

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 03/26/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED.** Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C24-01911 CASE NAME: SOPHIA COHN VS. LOZANO SMITH, LLP, A CALIFORNIA LIMITED LIABILITY PARTNERSHIP *HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLTFS SPECIAL INTERROGATORIES, SET 3 FILED BY: COHN, SOPHIA <u>*TENTATIVE RULING:*</u>

Plaintiff' Motion to Compel Further Responses to Special Interrogatories Nos. 34–47 is GRANTED. Defendant is to provide object-free, verified code-compliant responses by May 1, 2026. Plaintiff's request for sanctions is GRANTED, but the amount requested is unreasonable and is reduced to 1 hour of work at \$700 per hour. Defendant is to pay

Plaintiff \$700 in sanctions by May 1, 2026.

In summary, Plaintiff seeks *the number* of emails managing partner at Defendant's firm, Karen Rezendes, sent to Plaintiff, Sophia Cohn, each month from June 2022 to July 2023.

According to Plaintiff's complaint, on or around August 2022, after Plaintiff did not receive a promotion, the Defendants informed her that Ms. Rezendes, a managing partner, would begin mentoring her. Plaintiff maintains that it was explained to her that this mentorship was an opportunity for her to build a stronger relationship with Ms. Rezendes, with whom she had not previously worked, with the hope that she would gain Ms. Rezendes' approval for future promotion. Plaintiff maintains that while working under Ms. Rezendes, Ms. Rezendes would not provide much guidance, she would unnecessarily assign urgent deadlines, and she would frequently ignore Plaintiff's emails. On or around March 2023, there was another round of promotions at Defendant's firm and Plaintiff again was not promoted.

Defendant provided identical objections to Plaintiff's request for special interrogatories Nos. 34–47 which seek the number of emails Ms. Rezendes sent to Plaintiff from June 2022 to July 2023. Defendant maintains that the interrogatories are “overly broad as to time and scope”, “vague, ambiguous, unduly burdensome, and harassing”, and protected by “other applicable privileges.”

Ambiguity is a valid objection only if ambiguity precludes an intelligent reply. (See *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430.) Plaintiff's request for emails sent by Ms. Rezendes to Plaintiff during specific months and year does not preclude an intelligent reply, rather it is quite straight forward. All emails from Ms. Rezendes, regardless of their nature, appear relevant at this juncture based on Plaintiff's assertions.

Furthermore, an objection that the discovery is overly broad is only valid if it causes an undue burden or is irrelevant to the subject matter. (See C.C.P. §§2017.010 and 2017.020.) While Defendant maintains that Ms. Rezendes, as a managing partner, sends numerous emails firm-wide and therefore obtaining how many emails were to Plaintiff would be unduly burdensome also is without merit. Plaintiff is not asking for the content of the emails, she is simply requesting the number sent to her by Ms. Rezendes. This does not appear to be unduly burdensome as a law firm often needs to track emails sent as they work in billable hours and anything that would affect the firm office-wide would seem of great importance to the firm to also track. Additionally, the number of emails between Ms. Rezendes and Plaintiff is also not irrelevant to the subject matter. It would appear to this court that it would be relevant to both sides to identify how many emails Plaintiff was included in from Ms. Rezendes, including office-wide emails, as this evidence would one way or another tend to reveal whether Ms. Rezendes excluded Plaintiff from certain communications or would ignore emails.

To the extent any of the emails may have client-related communications or implicate other privileges, another contention raised by the Defense, again Plaintiff is not seeking the contents

of the emails in her Special Interrogatory requests and the protective order that is already in place between the parties should also alleviate these concerns.

Plaintiff's Motion to Compel is GRANTED. Defendant is ordered to provide objection-free, verified code-compliant responses to Special Interrogatories 34-47 by May 1, 2026.

Generally, monetary sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or that they would be unjust. (E.g., *Foothill Properties v. Lyon/Copley Corona Assocs., L.P.* (1996) 46 Cal.App.4th 1542, 1557-1558.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.)

“The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

Here, the court finds that Defendant's objections to Plaintiff's special interrogatories 34-47 were without merit and code-compliant responses are required. The Court does not find circumstances to excuse ordering sanctions, but the court does find that the sanctions requested in the amount of \$3,000 is unreasonable.

Defendant is ORDERED to pay Plaintiff sanctions in the amount of \$700 by May 1, 2026.

2. 9:00 AM CASE NUMBER: MSC21-01498
CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION
*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION
FILED BY: CAMINO RAMON TERRACE OWNER'S ASSOCIATION
TENTATIVE RULING:

Camino Ramon Terrace Owner's Association's Motion to Compel is GRANTED. The deposition of M3 Construction General Contractor, Inc.'s Person Most Knowledgeable is to take place on or before April 24, 2026. The Association's request for sanctions is GRANTED, however, the amount requested is unreasonable and is reduced to \$860. 2 hours of work at \$400 per hour, plus \$60 filing fee. M3 is to pay sanctions in the amount of \$860 by April 24, 2026.

California Code of Civil Procedure (C.C.P.) section 205.220 does not state that a party seeking to depose an individual cannot do so “unilaterally.” In fact, the statute expressly requires that a date be set and noticed. (*Id.* subd. (a)(2).) While this court observes that it

would be reasonable and more efficient for one side to reach out to the other in advance to work out dates, the statute does not require such and M3 Construction General Contractor, Inc.'s objection to the noticed depositions as being "unilaterally set" is without merit. (See Code Civ. Proc., §§ 2025.210-2025.295.) The court also observes that counsel for the Camino Ramon Terrace Owner's Association ("the Association") sent an email to M3's counsel on August 27, 2025 and September 15, 2025 (as to the first notice) and again on September 19, 2025 with a formal letter on September 29, 2025 (as to the second notice) in an effort to obtain dates for the depositions which were met without success.

It appears by M3's own admission they did not provide dates for the deposition of their person most knowledgeable until March 12, 2026, seven months after the Association's first request for dates, four months after the November 17, 2025, filing of the Association's motion to compel and just 14 days before the hearing on the motion. The Association has been seeking dates for this deposition since August 2025. This court reviewed M3's explanation for the delay and while this court is quite sympathetic to the stress and distrust that one may feel when faced with the unfamiliarity of our court processes, this is a sentiment often shared by individuals that appear in litigation as a party or even witnesses. While an explanation for the circumstances, it is not an excuse. Mr. Musser's hesitation and concerns are understandable, but it is not an excuse for counsel to fail to be able to obtain a single date between August 2025 and March 2026 for Mr. Musser to appear. The court would further observe that the emails that were provided to the court by M3 in support of their Opposition suggest an offer by Mr. Musser to provide more accommodating weekday dates for his deposition should the Association dismiss this motion and request for sanctions. This appears to demonstrate some knowledge or understanding on the part of Mr. Musser as to what was at stake related to this motion.

Of note, this court does not find that either party's efforts to meet and confer were meaningful and focused on working out their differences.

"The Discovery Act requires that, prior to the initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain 'an informal resolution of each issue.' [Citations.] This rule is designed 'to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. ...' [Citation.] This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. [Citations.]" (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) "[W]e find that the statute requires that there be a serious effort at negotiation and informal resolution. We leave it to the parties to determine the proper time, manner, and place for such discussion." (*Townsend, supra*, p. 1438.)

While counsel for the Association made efforts to communicate and obtain dates through email, some of which were responded to by M3's counsel, and a formal letter, at no time did either parties' counsel attempt to call one another or meet in person to work things out. (See California Rules of Court Rule 3.724, Contra Costa County Local Rule 2.121, subd. (e).) Meet

and confer efforts require more than futile emails and a one-sided formal letter. (See C.C.P., §§ 2016.040; 2019.030, subd. (b), 2030.090, subd. (a), 2031.060, subd (a).)

Nonetheless, the Court finds that M3 failed to provide dates for deposition of their person most knowledgeable prior to March 12, 2026; many of the dates provided were weekend dates; and all dates appear to not be available for the Association. Given the seven-month delay and limited weekday dates provided, the court does not find the motion to compel now moot, rather, **the motion to compel is GRANTED. The deposition of M3 Construction General Contractor, Inc.’s Person Most Knowledgeable is to take place on or before April 24, 2026.**

“If, after service of a deposition notice...without having served a valid objection...[the person] fails to appear for examination...the party giving the notice may move for an order compelling ...attendance and testimony...If a motion under subdivision (a) is granted, the court shall impose a monetary sanction...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (C.C.P. §2025.450, subd. (a)&(g).) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc., supra*, p. 75, citing *Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*U.S. Swimming, Inc., supra*, p. 1435.)

“The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

As previously stated, M3’s objection to the deposition was not valid and the court does not find that M3’s conduct was with substantial justification. Sanctions are appropriate for the seven-month delay in providing dates for the deposition and failing to produce Mr. Musser at the two dates noticed. (See C.C.P. §2025.450 (g)(2).) **The Association’s request for sanctions is GRANTED, however, the amount requested is unreasonable and is reduced. 2 hours of work at \$400 per hour, plus \$60 filing fee. M3 is to pay sanctions in the amount of \$860 by April 24, 2026.**

3. 9:00 AM CASE NUMBER: MSC21-01498
CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION
*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD OF DOCS,
SET 1

TENTATIVE RULING:

The Association's Motion to Compel Responses is DENIED as Moot as it appears that M3 subsequently verified their responses. The Association's request for sanctions is GRANTED, however, the amount for sanctions is reduced to \$450. M3 is to pay the Association \$450 in sanctions by April 22, 2026. The Association's new Motion to Compel Further Responses is CONTINUED to April 23, 2026.

The Association's Motion to Compel filed February 9, 2026, related to M3's failure to provide a verification with their July 2, 2025, responses to the Association's Request for Production of Documents, set one, served May 29, 2025. Based on the Association's March 19, 2026, Reply in support of their Motion to Compel M3's responses, it appears that M3 ultimately filed a verification and on March 13, 2026, they filed supplemental responses to the Association's request. Nonetheless, the Association now asserts that M3's supplemental verified responses were deficient and non-responsive, indicating that the Association is now seeking to compel *further responses* from M3 to their Request for Production of Documents, Set One.

This court orders that while M3 appears to have verified their July 2, 2025, responses sometime after the Association filed their motion on February 9, 2026, there is no justification as to why it took over seven months for them to do so. Pursuant to California Rules of Court Rule 3.1348, "the court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed...or the requested discovery was provided to the moving party after the motion was filed." Here, the court finds sanctions appropriate. However, the requested amount is unreasonable and the amount is reduced.

The Association's request for sanctions is GRANTED and M3 is to pay the Association \$450 in sanctions by April 22, 2026.

In the interest of judicial economy and the efficient resolution of this dispute between the parties, given an approaching trial date, this court takes the Association's Reply and declaration in support as a Motion to Compel Further Responses maintaining that M3's supplemental responses were deficient. This court will give M3 an opportunity to be heard as the issues before this court have evolved.

The parties are ORDERED to do the follow: 1) engage in good faith meet and confer efforts by April 10, 2026 either via telephone or in person; 2) file a supplemental brief by April 17, 2026 if the parties are able to resolve or at least able to narrow any of the issues before the court related to this motion; 3) M3 shall file, if they so desire, a response to the Association's motion by April 17, 2026, if the meet and confer efforts do not result in a productive resolution of the issues and still requires this court's intervention; and 4) if these issues are not resolved, appear for a hearing on this motion April 23, 2026 at 9:00 a.m. in Department 20, only if the parties contest the court's tentative ruling that will be issued on April 22, 2026.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C22-02483
CASE NAME: SASCHA ROGERS VS. CASSANDRA BANKSON, LLC
SETTLEMENT CONFERENCE IN-PERSON WITH JUDGE MELISSA O'CONNELL IN DEPT 20
FILED BY:
TENTATIVE RULING:

Vacated based on signed stipulation between the parties to continue the settlement conference to a later date.